Mercedes-Benz

SPECIAL PURCHASE CONDITIONS

These Special Purchase Conditions (hereinafter called "SPC") shall apply for the **Services** to Mercedes-Benz India Private Limited, (hereinafter called "MB India") save as varied by express agreement or by additional terms, if any, accepted in writing by both parties.

1 GENERAL

1.1 All additional terms and conditions for the **Services** by the Supplier shall be governed by this SPC, to which reference shall be made in the Purchase Orders / Purchase Contracts (hereinafter called "P.O, where appropriate.

1.2 Any other special conditions of the Supplier contrary to or different from this SPC will not apply and shall not form part of the P.O., even if they were not rejected explicitly in any individual case, unless otherwise specifically agreed in Written Form.

2 RELATIONSHIP

2.1 The relationship between the Supplier and MB India shall be on a Principal-to-Principal basis and does not create and shall not deem to create any Principal and Agent relationship or Employer-Employee relationship. The Supplier shall not by any acts, deeds or otherwise represent to any person that the Supplier are representing or acting on behalf of MB India.

3 OUTPUT / DELIVERABLES

3.1 The term "deliverables" shall mean all work, drawings, materials conceived, tools, systems, processes, methodologies, developments, analysis, computer programs, documentation in electric form, results originated or prepared by the Supplier for MB India and all intellectual property rights subsisting therein and the services mentioned in the P.O.

3.2 All the deliverables arising out of the services covered under this arrangement shall solely belong and vest with MB India and the Supplier shall not claim any rights or interest on the same.

3.3 MB India shall be the sole and exclusive owner of the deliverables and that MB India shall have the exclusive usage rights, unlimited in time, for all forms of use of the deliverables. MB India shall, in particular, have the right to duplicate, edit, redesign or translate such deliverables or to distribute it in such modified form or in the original form without restriction.

4 INTELLECTUAL PROPERTY RIGHTS:

4.1 The Supplier agrees and understands that the Services performed by them under this arrangement is on "Work made for hire" basis and that the deliverables and all other intellectual property rights subsisting therein, shall solely belong and vest with MB India and that the Supplier shall not claim any ownership right or license or any such rights on the same.

4.2 MB India shall be the Exclusive Owner of all such output/deliverables, including but not limited to designs, concepts, images, branding, outputs, research reports, compilation of data and other rights that accrue during the performance of the Services and the Supplier shall not claim any right or retain any such information at their end.

4.3 The Supplier undertakes that the intellectual property rights, if any on the services performed by the Supplier's personnel shall belong and vest with MB India.

4.4 In case, where the Supplier's IPR are involved in the deliverables, the Supplier hereby grants an irrevocable perpetual non-exclusive license to MB India for the usage of the IPR belonging to the Supplier.

4.5 MB India shall be the owner of all the supporting documents, any other documents and unprotected knowledge resulting from the said arrangement.

5 PERFORMANCE REVIEW:

5.1 MB India shall at any time carry out the review of the services performed by the Supplier. In case of any improvements/action points identified, MB India shall intimate the same and the Supplier is advised to implement the same immediately without fail.

6 REPRESENTATION AND WARRANTIES:

6.1 The Supplier represents that they have the required experience, expertise and requisite skills in performing the Services covered under this arrangement and that your personnel possess the professional and technical skills required to perform such Services.

6.2 The Supplier warrants that they shall always meet the required standards and specifications agreed with MB India.

6.3 The Supplier represents that they are aware of all laws, regulations, orders, and other governmental requirements pertaining to performance of the Services covered under this arrangement.

6.4 The Supplier warrants that they will obtain all permits and licenses necessary to perform the services and they will perform the services in compliance with all necessary and applicable permits and licenses.

6.5 The Supplier represents that no actions have been brought or are likely to be brought against them that could prevent from performing the services and have an adverse effect on MB India.

6.6 The Supplier represents and warrants that they shall perform their responsibilities under this arrangement in a manner that does not infringe, or constitute an infringement or misappropriation of, any patent, trade secret, copyright or other proprietary right of any third party.

6.7 The Supplier warrants that they shall perform the services as per the timelines and milestones agreed with MB India.

6.8 If during the course of performing the services covered under this arrangement, any invention arises, the same shall solely belong to MB India and the Supplier shall not claim any rights on the same.

7 DUTIES AND OBLIGATIONS:

7.1 The Supplier shall ensure that their manpower deployed for performing the Services are duly covered by the protection given under various labour legislations.

7.2 The Supplier shall always employ only competent persons with unblemished track record for carrying out the services. In the event of any adverse report about the deputed manpower, MB India shall immediately demand for replacement of such manpower within the time frame stipulated by MB India.

7.3 The Supplier shall ensure that all their manpower shall at all time abide by the rules & regulations and the policies as applicable at MB India's premises.

7.4 The Supplier shall ensure that their manpower while performing the services at MB India's premises shall observe the standard or cleanliness, decorum, safety and general discipline, as may be prescribed by MB India.

7.5 The Supplier shall ensure to prevent their manpower from entering the premises of MB India, if MB India considers their presence undesirable.

7.6 The Supplier shall be solely responsible for any negligent act committed by your personnel within MB India's premises, which may result in bodily injury, loss to property, accident, death etc.

7.7 The Supplier understands that in case of death or bodily injury to any of their manpower while carrying out the services, MB India shall not be liable or bound to pay any monetary compensation or otherwise be responsible in any manner whatsoever and the Supplier shall be solely responsible for the same.

7.8 The Supplier shall take necessary insurance coverage for all their manpower, who perform the services including, Workmen Compensation Insurance, Employees State Insurance; and other General Liability Insurance.

7.9 The Supplier is required to provide copies of necessary documents as and when called for by MB India, evidencing compliance with all statutory laws and regulations.

7.10 The Supplier shall carry out the services as per the terms and conditions as specified under this P.O. Besides, MB India shall from time to time issue guidelines as to the manner in which their personnel shall discharge their duties, responsibilities and obligations under this P.O.

7.11 The Supplier shall impose confidentiality obligations on their personnel similar to that of non-disclosure agreement executed with MB India if any. The Supplier's personnel shall not disclose to any third party any confidential information or knowledge concerning the businesses of MB India, and the Supplier shall take all such steps at their own expense as MB India may direct in order to enforce or restrain any such disclosure.

7.12 The Supplier will utilize the Equipment/Goods/Products ("Equipment"), if any provided by MB India exclusively for the purpose of performing the Services covered under this P.O.

7.13 The Supplier shall carry out periodical maintenance of the above said Equipment, as per the instructions given by MB India.

7.14 The Supplier shall be responsible for any wrong usage of Equipment and shall take all necessary precautions to avoid such instances.

7.15 The Supplier agrees that MB India is the absolute owner of the Equipment and the Supplier shall promptly return the Equipment to MB India once all the services are completed or at any time as required by MB India.

7.16 The Supplier shall be responsible for any damage caused to the Equipment due to any accident, mishandling and theft at the Supplier's site.

7.17 The Supplier agrees to hold the Equipment in trust for and on account of MB India and as the exclusive property of MB India and that the Supplier shall not create any charge, lien or encumbrance affecting the Equipment or do anything which would prejudice the interest of MB India.

8 DUTIES AND RESPONSIBILITIES OF MB India

8.1 MB India shall provide all necessary inputs, specifications and standards, at the agreed time with the Supplier for the performance of the Services covered under this P.O.MB India shall sort out relevant queries raised by the Supplier during the execution of the services by the Supplier.

9 DAMAGES FOR DELAY

9.1 Time is the essence of this arrangement. The Supplier agrees and understands that any non-performance or delay on their part in performing the Services will cause irreparable loss and damage to MB India. The Supplier agrees to indemnify and keep MB India indemnified against all losses, direct, indirect, special and consequential damages incurred by MB India arising out of non-adherence to timelines.

10 INDEMNITY

10.1 The Supplier shall be liable and responsible for any claim involving death or bodily injury or damage to property which arises out of or in connection with Services or their use by MB India, the Supplier will indemnify MB India in respect of such claims, unless they arise by reasons of negligence by MB India.

11 ASSIGNMENT / SUB-CONTRACTING

11.1 The Supplier shall perform the Services on their own and shall not assign, transfer or sub-contract any of their rights and obligations, except with the prior written permission of MB India. MB India shall be entitled to assign/transfer its rights and benefits to any other person.

12 TERMINATION

12.1 MB India shall terminate the P.O. immediately without any further notice or payment in lieu of such notice, if the Supplier fails or neglects to observe or commits or allows to be committed any breach of the terms, conditions provision or stipulations of the P.O., GPC and SPC.

12.2 MB India shall have the right to terminate the arrangement (a) if the supplier has been black listed by Government of India on GST portal, and or (b) If GST compliance rating of the supplier is not satisfactory.

12.3 However, notwithstanding the above, either party may terminate this arrangement for convenience by giving 30 days' notice in writing to the other party or as mentioned in P.O.

12.4 Upon termination of this arrangement, the Supplier shall not withdraw their manpower abruptly and shall ensure that the work or assignment undertaken by them shall be completed and there is no work pending which shall cause loss or inconvenience to MB India.

12.5 The expiration or termination of this arrangement order shall be without prejudice to the accrued rights of MB India.

12.6 In the event of termination of this arrangement for any cause whatsoever, the Supplier shall have no claim against MB India of any sum by way of compensation damages or otherwise.

13 WAIVER

13.1 Any waiver by MB India of any breach by the Supplier shall not operate or be construed as a waiver of any subsequent breach or any other provisions hereof.